

Appendix ApxDD1

Contents

This appendix contains screenshots, emails and other evidence relating to two occasions where Octopus took a Direct Debit amount contrary to clear instructions not to do so.

Background

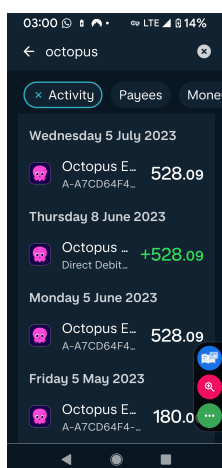
I do not object to Direct Debits in principle. Used properly, they are convenient for both the customer and the supplier. Minor amendments can be dealt with without excessive process, and a reasonable degree of flexibility can save time for all parties.

However, the Direct Debit scheme relies on mutual trust. A supplier should not overstep the mark in pursuit of its own commercial interests. It should also give sufficient notice of any proposed change, proportionate to the size of the change.

A customer may be able to absorb a small variation, such as £10 or £20, with relatively short notice. It is completely unreasonable to expect a customer to absorb hundreds of pounds in additional payments at short notice. In this context, I would regard around a week as short notice. For a substantial increase, I would expect around a full calendar month's notice.

Each case is unique, but I was surprised that a professional organisation such as Octopus appeared not to apply that basic understanding. The Direct Debit scheme depends on consent, notice and trust. In this case, that trust was not respected.

Details — 05-06-23: withdrawal of £528, agreed amount £300



Octopus energy unauthorised withdrawal

As shown in the image above, £528 was taken on the date shown.

Please see the following emails in thread 1, regarding the proposed increase to my Direct Debit amount:

- **19 May** — Octopus sought authorisation to increase the Direct Debit amount to £528.09.
- **20 May** — I responded clearly that I was not authorising this at present. I also explained the information I would need in order to review the matter properly.
- **22 May** — Octopus responded, indicating that they could provide the information requested and specifically stating that they had not changed the Direct Debit without my consent.

Octopus then appears to have taken the increased amount, contrary to both my express refusal and their own written response.

In their response to me, Octopus stated:

“... However, we would like to clarify that we did not set the direct debit amount without your consent. We suggested a change to your direct debit amount based on your energy consumption to ensure that your payments cover your usage and prevent any debit on your account. We understand that you would like to keep your direct debit amount the same, and we can certainly accommodate that request...”

That statement is important because it confirms Octopus understood that I did not consent to the increase, and that I wished to keep the Direct Debit amount the same.

The issue is therefore straightforward: Octopus proposed a substantial increase, I expressly refused to authorise it, Octopus acknowledged that position in writing, and the increased amount was then taken anyway.

Note: I did not refuse to engage with the issue. I explained that I needed further information before I could properly review the proposed increase. My expectation was that Octopus would provide the relevant information in a clear and structured way before making any such change.



Mark Collins-Cope <markcollinscope@gmail.com>

For Mark Collins-Cope: an important update to your payments

3 messages

Octopus Energy <hello@octopus.energy>
To: markcollinscope@gmail.com

19 May 2023 at 22:41

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Mark Collins-Cope
Account no. - A-A7CD64F4
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Hello Mark,

I hope you're well. I've been reviewing our customers' regular payments to ensure they're set to a sensible level, and noticed your payments need a big change.

Looking at forecast prices (which will start to fall from July) and estimated use, your payments really should be around the £528.09 level which is an unusually large change from what you're currently paying.

I don't want your account falling too far behind, so I'll go ahead and make the change, but please do let me know if this is completely bonkers, or it looks like something's awry with your forecast, or if you're worried you simply can't afford these payments.

It's very straightforward to change your payments to another level before your next payment goes out – you can do so online if you prefer – and if you're struggling with your bills, we can help you get financial support. We've helped thousands of Octopus customers – the most important thing is just to let us know.

Kind regards,
Jon Peters

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Your account at a glance:

Your account number: A-A7CD64F4

Your account balance: -£2,255.43

About your balance: <https://octopus.energy/help-and-faqs/categories/bills-and-payments/credit-or-debit-with-you/>

QUICK LINKS:

Change your monthly payment amount: <https://octopus.energy/dashboard/new/accounts/A-A7CD64F4/payment-details/payment-amount/>

Moving house?

<https://octopus.energy/dashboard/accounts/A-A7CD64F4/properties/3508990/move-out/>

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

<https://octopus.energy/blog/energy-crisis-support/>

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://octopus.energy/ihd-display-screen-help/>

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We're here to help - Just reply to this email.

Octopus Energy Limited is a company registered in England and Wales.

Registered number: 09263424.

Registered office: UK House, 5th floor, 164-182 Oxford Street, London, W1D 1NN.

Mark Collins-Cope <markcollinscope@gmail.com>

20 May 2023 at 05:43

Reply-To: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Hi,

SORRY BUT I AM NOT AUTHORISING THIS AT PRESENT.

Any attempt to take that amount of money would be met with a direct-debit recall.

You set the amounts payable - so I'm not extremely unhappy about this.

Unfortunately I am extremely busy at the moment dealing with numerous other issues - as you may have noticed the country doesn't exactly work at present.

Each of these requires around 20-30 spare hours to resolve.

Mortgage companies. Local council. Funeral services... it's never ending.

Reviewing the Octopus situation will no doubt take at least 10 hours as I will have to review **all** previous communications to see how this situation has arisen.

Hence you'll have to bear with me and give me time to get back to you. It's going to be a couple of months I'm afraid.

I will need confirmation in writing (i.e. by post) and printed copies of:

- **all** communications between us - email or other.
- copies of all bills - yours obviously - and including those of your predecessor if you are including anything 'owed' to them.
- legal justification of any amounts you are claiming based on your predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so ceased to exist, along with their debts and credits.
- full details of how/when you have taken readings from me - and if not the basis on which any estimated bills are made.
- written confirmation of how you create the 'forecast' on which you are basing your figures.

Please confirm (BY EMAIL):

1. That you will NOT attempt any change in direct debits (if I don't receive this confirmation, I'll cancel the DD and pay by standing order).
2. the written information I have requested.

Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

To book a meet/call, this is the easiest way: <https://calendly.com/markcollinscope/30min>

Mark Collins-Cope
 Mobile: 0777 163 6882
<https://github.com/markcollinscope>
www.markcollinscope.online
 author: agile development with iconix process (hardback - apress)
 editor: www.objectviewview.online (technical ezine)

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Octopus Energy <hello@octopus.energy>
 To: markcollinscope@gmail.com

22 May 2023 at 17:56

Hi Mark,

I'm sorry to hear that you're not able to provide a fixed amount for your direct debit at this time. We understand that you have other pressing matters to attend to, and we appreciate your patience with us.

Regarding your request for written confirmation, we can certainly provide you with copies of all communications between us, as well as copies of your bills and any legal justification for amounts owed. We can also provide you with details of how and when we take readings from you, and how we create our balance forecast.

However, we would like to clarify that we did not set the direct debit amount without your consent. We suggested a change to your direct debit amount based on your energy consumption to ensure that your payments cover your usage and prevent any debit on your account. We understand that you would like to keep your direct debit amount the same, and we can certainly accommodate that request.

When you are able to, if you can let me know a fixed amount you can afford a month towards your energy bills, I will change this for you

Please let us know if you have any further concerns or questions. We are always here to help.

Kind regards,
 Adam

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On Fri, 19 May 2023 at 21:46, markcollinscope@gmail.com wrote:

Hi,

*SORRY BUT I AM NOT AUTHORISING THIS AT PRESENT.
 Any attempt to take that amount of money would be met with a direct-debit recall.*

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Unfortunately I am extremely busy at the moment dealing with numerous other issues - as you may have noticed the country doesn't exactly work at present.

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predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so

ceased to exist, along with their debts and credits.

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2. the written information I have requested.

Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

To book a meet/call, this is the easiest way:

<https://protect-eu.mimecast.com/s/edEoClv6nCoyKKNITGpAsQ?domain=calendly.com>

Mark Collins-Cope

Mobile: 0777 163 6882

<https://github.com/markcollinscope>

https://protect-eu.mimecast.com/s/ZI3-Cm2Xoi5ZYYNqIOSjJ_?domain=markcollinscope.online

author: agile development with iconix process (hardback - apress)

<https://protect-eu.mimecast.com/s/pqoKCnYJpFGzLLNVuNkroS?domain=amazon.co.uk>

editor: www.objectviewview.online (technical ezine)

https://protect-eu.mimecast.com/s/WOF_CovJqCXMGG3mt6Vlzz?domain=objectiveview.online

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About your balance:

<https://protect-eu.mimecast.com/s/VVJbCpRV0CzGLL3ZFJHd1p?domain=octopus.energy>

QUICK LINKS:

Change your monthly payment amount:

<https://protect-eu.mimecast.com/s/GM58CqV8vfODrrjvurGBjf?domain=octopus.energy>

Moving house?

<https://protect-eu.mimecast.com/s/ZVUUCrE7wSApjlOhGqUjC?domain=octopus.energy>

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

https://protect-eu.mimecast.com/s/d6oVCvYJAFWGggzZT8oL_1?domain=octopus.energy

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://protect-eu.mimecast.com/s/LC04CwEgBSL7QQ3nTRpNz8?domain=octopus.energy>

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